AMENDED BYLAWS
OF
SOUTH BOISE VILLAGE
NEIGHBORHOOD ASSOCIATION

ARTICLE I. GENERAL PLAN OF OWNERSHIP

Application Section 1. All people who choose to be a member of the Association are subject to the regulations set forth in the Bylaws of the Association.

Boundary Section 2. The boundary is as so depicted on the attached map, Attachment A. The Association is bound on the west by Protest Road, on the east by Broadway Avenue, on north by Boise Avenue, and on the south by Howard Street (both sides).

Sub-districts each having representation on the Board of Directors may be established by a majority vote of the Association members.

ARTICLE II. MEMBERSHIP, VOTING, DUES

Eligibility Section 1. Membership is open to residents, property owners, business licensees, business employees and representatives of nonprofit organizations located within the Association boundaries. In no event shall any person be eligible for more than one membership. Membership shall terminate at once for anyone who ceases to reside, own property, conduct business or be employed within the boundaries of the Association.

Dues Section 2. Dues are not required for membership or voting in the Association. Voluntary contributions, or other sources as authorized by the Board of Directors, may be used as an income source for the Association. Any income realized by the Association will be used to pursue the purposes of the Association. No Board member will receive an income.

Voting Section 3. For purposes of voting, signing name and address in the "Official Membership List" annually shall evidence membership. Each member shall be entitled to one vote. A simple majority vote is needed to adopt any action.

Authority Section 4. No member, including any member of the Board of Directors whether acting individually or for the Board, may represent to any public agency, the media, or other person or entity whatsoever that

they represent the Association or the views or desires of the Association or the majority of the members unless such representation, and the essential content of the representations made by such member, has specifically been authorized by vote of the Board. It is the intent of this section that the Association shall represent the consensus of the members, and if consensus cannot be reached, then no representation shall be made in the name of the Association on behalf of its members. A summary of dissenting views shall be transmitted along with any recommendation made by the Association to the City.

ARTICLE III. MEETINGS

Participation Section 1. All meetings are open to any person.

Consent Section 2. Any member who fails to attend any properly noticed meeting shall be deemed to have consented to whatever action transpires at such meeting unless specific objection in writing is lodged with Board or affected committee (e.g. the Grievance Committee) within five (5) calendar days of such meeting. It shall be the duty of all absent members to acquire from the Secretary or other Board of Directors, any and all decisions or actions that occurred at any and all meetings.

Place to Meet Section 3. All meetings, whether regular, special or annual shall be held at a suitable location within the Association or as close thereto as is reasonably practicable, considering the distance, suitability of facilities, and cost, if any. When practical, public meeting places such as libraries and schools are preferred.

Agenda Section 4. Any member of the Association may add any discussion item to the agenda of any meeting by submitting the item in writing, to any member of the Board of Directors no less than twenty-four (24) hour in advance of the meeting. The President of the Association shall prepare the agenda and provide it to the Secretary. The meeting agenda shall be posted on social media no less than thirty-six (36) hours before each Board, Annual or Special meeting

Annual Meeting Section 5. There shall be at least one general membership meeting yearly. The meeting shall occur during the month of September. Business to be covered at the annual meeting shall include a report on activities of the previous year, and planned activities for the coming year. Actions which may occur include: 1) election of Board of Directors, 2) amend the Association's Bylaws or Articles of Incorporation, 2) discussion of items placed on the agenda by a member, 3) actions listed under "Special Meeting".

Special Meetings Section 6. Special meetings of the general membership may be held, at the call of the President or the Board of Directors, or upon the agreement of not fewer than ten percent of the Association membership, as necessary to further the purpose of this Association. Actions which may occur include: 1) to amend the Association's Articles and Bylaws. Members of the Association must be notified of proposed bylaws amendments by at least two discrete social media postings at least five calendar days in advance of the meeting at which they would be considered. 2) to vote to remove an officer or Board of Director, 3) election of Board of Directors and Officers if there is a lack of quorum at the Annual Meeting, 4) to discuss items placed on the agenda by a member, 5) to vote on a grievance, 6) to create Association Sub-Districts and representation.

Notice Section 7. Notice of time, place and agenda of each general membership meeting shall be given to each member of record of the Association by no less than two discrete media postings seven days prior to meeting.

Members Quorum Section 8. In the case of a meeting of the general membership, a quorum shall be in effect when at least twenty-five members or twenty-five percent (25%) of the members of record, including the President or his or her designee are present. If a quorum is not present, then those present may take informal action, but any communication regarding that action shall state the lack of a quorum unless the action is ratified at a subsequent meeting at which a quorum is present. The act of the majority of the general membership at a meeting when a quorum, as described above, is present shall be the act of the Association.

Board Meetings Section 9. The Board of Directors shall meet at least quarterly; notice and agenda of each meeting to be posted on at least one social media site, no less than 36 hours prior to the meeting. The general membership is invited to attend these meetings. Actions which may occur include: 1) establishing a committee; 2) selecting the meeting date of the annual meeting of members; 3) authorizing funding sources for the Association; 4) filling a vacancy during an officer's term; and 5) discussing items placed on the agenda by a member.

Special Board Meetings Section 10. A Special Meeting of the Board of Directors may be called at any time by the President, or, in his or her absence, by the Vice President, or any Board of Director with reason to do so. Actions which may occur include: 1) review proposed development projects and approve actions to represent the neighborhood's position during at Boise City Planning & Zoning Commission, Design Review Committee, Historic Preservation Commission, City Council, public hearings or other meetings. 2) to resolve grievance issues. The complainant and defendant

(i.e. Board, Grievance Committee, etc.) shall be notified of such meeting by mail no less than five days in advance of the meeting; and 3) to discuss items placed on the agenda by a member. For special board meetings, notice shall be to the entire Board of Directors by email at least thirty-six (36) hours in advance of the meeting. Notice to the general membership and the agenda of the special meeting shall by no less than two media postings no less than thirty-six (36) hours in advance of the meeting

Board Quorum Section 11. In a meeting of the Board of Directors, a quorum shall be in effect when at least fifty percent (50%) of the Board of Directors, including the President or his or her designee are present. If a quorum is not present, then those present may take informal action, but any communication regarding that action shall state the lack of a quorum unless the action is ratified at a subsequent meeting at which a quorum is present. The act of a majority of Directors at a meeting when a quorum, as described above, is present shall be the act of the Association. Refer to Article II, Section 4, and Article IV, Section 1, for accountability to the general membership.

ARTICLE IV. BOARD OF DIRECTORS / OFFICERS

Board Section 1. The Board of Directors shall consist of not less than three (3) individuals and not more than nine (9), each of whom at all times shall be a member of the Association. The Board of Directors shall be elected by the members of record from candidates nominated by the members of record. The affairs of the Association shall be managed by a Board of Directors in the interim between general meetings of members. The Board shall be accountable to the membership; shall seek the views of those affected by any proposed policies or reactions in a public meeting format before adopting any recommendation on behalf of the Association; and shall strictly comply with these Bylaws. A Boise State University student may be appointed to the Board as a non-voting member to further the interest of communication and understanding between students and residents.

Officers Section 2. The elective Officers of the Association shall be President, Vice President, Secretary and Treasurer. The Secretary and Treasurer may be one individual. Officers, communicating on behalf of the Association, may do so only in accordance with Article II, Section 4. The Officers of the Board shall be elected by the Board in an executive session following the annual meeting, or at the first meeting of the Board following the annual meeting.

President. The President shall prepare the agenda, facilitate meetings and be the primary representative of the Association at public meetings of the

Association or of local government. He or she shall perform all other duties usually pertaining to the office of President.

Vice-President. In the absence of the President or in the event of his/ her inability or refusal to act, the Vice-President shall perform the duties of the President, and when so acting, shall have all the powers of and be subject to all the restrictions upon the President. He or she shall perform all other duties usually pertaining to the office of Vice-President.

Secretary. The Secretary shall keep and publish minutes of meetings, see that all notices are duly given in accordance with the provision of these Bylaws, be custodian of the Association records, keep a register of the post office address of each active member, which shall be furnished to the Secretary by such member in the "Official Membership List", keep a register of committee membership, and in general perform all the duties incident to the office of Secretary.

Treasurer. The Treasurer shall have charge of all Association funds, deposit them in an account in the name of the Association, make a complete financial statement at the Annual Meeting and, report verbally to the Officers at quarterly board meetings. He or she shall perform all other duties usually pertaining to the office of Treasurer.

Election

Section 3. The Board of Directors shall be elected by Association members at the Annual Meeting. Any member is eligible to run and may be nominated by any other member or by him or herself. Board members shall have a three-year term that is renewable upon re-election. Board Officers shall be elected by the Board in an executive session after the annual meeting or at the first Board meeting thereafter. Officers shall serve for a two-year term and such term shall begin immediately after their election. The duties of the Officers shall be as provided in these Bylaws and as may be assigned to them by the Board of Directors, if not so stated herein.

Removal

Section 4. Removal of an officer may occur at a special meeting of the members called and properly noticed for that purpose, by the affirmative vote of a two-thirds (2/3) vote of the members of record present at the meeting.

A Board of Director who has three (3) un-excused absences for consecutive meetings shall be automatically removed from the Board of Directors. A Board member who falsely represents the Association, as described in Article II; Section 4, shall be automatically removed from the Board.

Vacancies Section 5. A vacancy in any office because of resignation, removal, disqualification or otherwise, may be filled by appointment by the Board of Directors for the unexpired portion of the term.

ARTICLE V. COMMITTEES

Organization Section 1. At the request of any member, a committee may be established by the Board of Directors as deemed necessary. Members of a committee shall work in union to achieve the purposes of the committee and may be comprised of any Association member who desires to be part of said committee. Committees shall make recommendations to the Board of Directors.

Standing Committees Section 2. The Association shall have at least three committees:

1) A Public Agency Committee, whose purpose is to monitor meetings, agendas and actions of public agencies and commissions, including but not limited to the Ada County Highway District, and Boise City. It shall also be the purpose of this committee to participate in ongoing dialogues with developers and the City regarding development projects and to make recommendations to the Board of Directors for action.
2) A Neighborhood Investment Program Committee, whose purpose, in part, is to apply for funds available through the City Neighborhood Investment Program. This committee's purpose is not limited to seeking funding from City programs but may explore the multiple ways the neighborhood may be invested in, both by the neighborhood itself, and other organizations. Aspects of this committee's responsibility include identifying eligible projects and to establish a project prioritization procedure. Given the financial implications of this committee, this committee shall always include either the President or the Treasurer, or both, as a member.

Potential Committees Section 3. Committees including but not limited to the following may be formed:

1) Communications and Community Building Committee, whose purpose is to bring the people of the community together in fun, informal ways so that the people of the neighborhood may get to know each other. It is these informal meetings and activities that often form the foundation of the strongest associations. Membership of the committee must include the Treasurer of the Association. The Committee is authorized upon approval of the Treasurer to purchase items to support communications and community building activities. The City's Neighborhood Investment Program mini-grant funds may be requested annually as one source of funding for communications and community building.

2) Neighborhood Planning Committee, whose purpose is to conduct neighborhood planning in the manner described in the official "Neighborhood Planning Guide" of Boise City.

ARTICLE VI. NEIGHBORHOOD PLANNING

Process Section 1. Neighborhood planning will be conducted in the manner described in the official "Boise City Neighborhood Planning Guide".

Number Section 2. At least one Board member shall be a member of the planning committee.

Location Section 3. The majority of planning committee members must live within the boundary of the neighborhood planning area.

Membership Section 4. The planning committee membership must represent the varied interests within the boundary of the neighborhood planning area. For example, if a large percent of the community is comprised of renters then renters shall be represented on the committee. Boise City's Energize Our Neighborhoods program is able to provide the committee with this kind of demographic information. The planning committee membership must also be diverse. A diverse membership includes residents, business owners, youth, senior citizens, and individuals with varied abilities and backgrounds.

ARTICLE VII. GRIEVANCE PROCEDURES

Eligibility. Section 1. A member of the Association adversely affected by an action of the Board of Directors may submit in writing a complaint to any member of the Board of Directors. Such complaint shall be provided in writing within five (5) calendar days of the meeting or event where such action took place.

Resolution Section 2. Within a reasonable amount of time, not to exceed twelve (12) calendar days of receipt of the complaint, the Board shall arrange with the complainant a mutually acceptable place, day and hour for a review of the complaint, and will in writing, within five (5) calendar days of such meeting, mail a recommended resolution, and/or action, of the grievance to the complainant and each member of the Board of Directors. The Board of Directors shall hold a special meeting within five (5) calendar days of the postmarked letter from the Board to determine

whether or not the committee's recommendation is acceptable to the Board of Directors or complainant.

Final

Section 3. If the board is unable to resolve the grievance, then final resolution of the complaint shall be by vote of the membership at a special meeting of the membership. The Board shall be obliged to call this meeting.

ARTICLE VIII. AMENDMENTS

Amendments

Section 1. These Articles of Association, Bylaws, and any attachments thereto, may be altered, amended or rescinded, or new Bylaws adopted. Such changes may occur by the affirmative vote of two-thirds (2/3) of the members of record present at the properly noticed meeting. Amendments go into effect immediately following their adoption.

Article IX. ADOPTION OF ARTICLES OF ASSOCIATION AND BYLAWS

Section 1. The undersigned, being a majority of the members present at the meeting of the Association held Oct. 22, 2017, do hereby certify that the within and foregoing Articles of Association and Bylaws constitute the Articles and Bylaws of such Association:

1. Elizabeth Lester Barnes
2. Linda Paul
3. Patrick Durland
4. Allison McCallum
5. Kathryn Fahey
6. Sandy Provant

The undersigned, being a majority of the members present at the meeting of the Association held, 5/16/19 do hereby certify that these amended documents supersede all formerly adopted Articles of Association and Bylaws of the Association:

1. Elizabeth Lester Barnes Elizabeth Barnes
2. Allison McCallum
3. Linda Paul
4. Kathryn Fahey
5. Pat Durland
6. Rialin Flores
7. Lenchi Jimenez
8. Lisa Kusneirz
9. Sandy Provant

ATTACHMENT A. DEPICTION OF BOUNDARY

